



Statement of Expectations for the Board of the Civil Aviation Safety Authority for the Period 15 July 2019 to 30 June 2021

I, Michael McCormack, Minister for Infrastructure, Transport and Regional Development, make the following instrument.

Dated 4 July 2019

Michael McCormack
Minister for Infrastructure, Transport and Regional Development

1. Overview

This instrument is the *Statement of Expectations for the Board of the Civil Aviation Safety Authority for the Period 15 July 2019 to 30 June 2021*.

This instrument commences on 15 July 2019 and expires at the end of 30 June 2021 as if it had been repealed by another instrument.

This instrument puts in place a new Statement of Expectations (SOE) which serves as a notice to the Board of the Civil Aviation Safety Authority (CASA) under section 12A of the *Civil Aviation Act 1988* (the Act).

This new SOE formalises the Government's expectations concerning the operations and performance of CASA.

CASA should perform its functions in accordance with the Act, the *Airspace Act 2007* and the *Public Governance, Performance and Accountability Act 2013* (PGPA Act) as well as other relevant legislation.

I also expect that the conduct and values of CASA's Board and staff should be consistent with that of the Australian Public Service.

2. Governance

I expect that the Board and the Director of Aviation Safety (DAS) will continue to work to enable the effective operation of CASA as the national aviation safety regulator.

I expect CASA to be a world-best-practice aviation safety regulator.

I expect the Board be responsible for the matters set out in the Act, including in particular, CASA's strategic direction, risk management and corporate planning.

I expect the Board to ensure that CASA makes progress on its strategic priorities, including the key aviation initiatives outlined in this statement.

I also expect the Board to continue to facilitate effective interaction between CASA and industry.

Subject to the Act, I expect the DAS, as the Chief Executive Officer of CASA, to continue to be responsible for managing the operations of CASA, its organisational capacity, and the exercise of its statutory functions. This includes the development and implementation of regulation, executive-decision making, and all day-to-day operational, financial, personnel and administrative activities.

I expect the Board to keep the Secretary of my Department and me fully informed of CASA's actions in relation to the requirements stated in this SOE, and promptly advise of any events or issues that may impact on the operations of CASA, including through quarterly progress reports from the Board against the Corporate Plan and this SOE.

3. Regulatory Approach

I expect CASA will continue its regulatory approach, in accordance with its regulatory philosophy, with:

- (a) a focus on aviation safety as the highest priority;
- (b) consideration of the economic and cost impact on individuals, businesses and the community in the development and finalisation of new or amended regulatory changes; and
- (c) a pragmatic, practical and proportionate approach to regulation as it applies to different industry sectors.

4. Key Aviation Initiatives

I expect CASA, in conducting its responsibilities as the aviation safety regulator, will focus on the following key aviation initiatives:

- (a) finalise the remaining new Civil Aviation Safety Regulations and ensure effective implementation and transition arrangements are applied.
- (b) continue effective engagement with industry in the lead up to the implementation of the flight operations suite of regulations, including on the issue of passenger limitations under Part 135 and on the development of associated regulatory and guidance material.
- (c) support Airservices Australia in the implementation of the new civil-military air traffic management system, also known as OneSKY, with timely approval and certification activities, in addition to the continuing regulatory oversight of Australia's existing air traffic management system.
- (d) continue to respond to emerging risks related to drones, including the implementation of a registration and accreditation scheme and working collaboratively with my Department and Airservices Australia on an approach to the safe and efficient airspace integration of unmanned vehicles that complements the Government's broader approach to this sector.
- (e) provide regulatory oversight for major aerodrome infrastructure projects, including Western Sydney Airport and significant new runway projects, as well as providing authoritative and timely advice to me and my Department on other airport developments, to assist me in complying with the statutory requirements of the *Airports Act 1996*, and regulations made under it.

- (f) work with my Department and Airservices Australia on modernising airspace management, including, as the regulator, leading the development of a national strategic airspace plan which articulates a regulatory narrative on controlled airspace.
- (g) work with Geoscience Australia and Airservices Australia to progress safe and timely implementation of satellite based augmentation systems in the air traffic management environment.
- (h) assist the Australian Space Agency in forming their regulatory framework for high powered rockets and provide timely approvals and advice for operation under their regulations to ensure safe integrations into the air traffic management environment.
- (i) continue to share safety information consistently with the Safety Information Policy Statement agreed with the Australian Transport Safety Bureau.
- (j) maintain international and regional aviation safety engagement through effective engagement in the International Civil Aviation Organization (ICAO) and strategic support of aviation safety initiatives in the Asia-Pacific region.
- (k) continue to ensure CASA's training and recruitment strategies provide the organisation with the skills and expertise to meet the current and emerging challenges in aviation safety regulation.

5. Stakeholder Engagement

I expect CASA will continue to:

- (a) undertake effective and ongoing engagement with the aviation industry to create a collaborative relationship based on a foundation of mutual understanding and respect.
- (b) communicate clearly and regularly with relevant Government agencies, industry and other key stakeholders regarding CASA's activities and functions.
- (c) work closely with my Department and other Government agencies, including the Australian Transport Safety Bureau, Airservices Australia and the Defence, to deliver integrated and comprehensive safety advice to the aviation industry and the community.

GENERAL ASSEMBLY



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~~ROLE AND PARAMETERS FOR PERSONS WHO EXERCISE THE FUNCTIONS OF
THE
SECRETARY GENERAL AND THE ASSISTANT SECRETARY GENERAL OF THE
OAS~~

~~(Adopted at the first plenary session, held on June 27, 2024)~~

~~THE GENERAL ASSEMBLY,~~

~~CONSIDERING any elections of persons for the positions of Secretary General and Assistant Secretary General;~~

~~RECOGNIZING the important role that must be played by the General Secretariat of the OAS in support of the efforts of the member states, individually and collectively, to promote and implement the principles and objectives of the OAS;~~

~~REAFFIRMING the norms established in Chapter XVI (The General Secretariat) of the Charter of the Organization of American States, in particular the functions of the General Secretariat established in Articles 107 to 113 and Article 118; and~~

~~REAFFIRMING ALSO the legal framework applicable to the exercise of the functions of the Secretary General and Assistant Secretary General, which encompasses the "General Standards to Govern the Operations of the General Secretariat", the OAS Staff Rules and the Code of Ethics;~~

RESOLVES:

1. ~~—— To reaffirm Article 118 of the OAS Charter which states: "In the performance of their duties, the Secretary General and the personnel of the Secretariat shall not seek or receive instructions from any government or from any authority outside the organization, and shall refrain from any action that may be incompatible with their positions as international officers responsible only to the Organization".~~

2. ~~—— To emphasize that persons who exercise the functions of Secretary General and Assistant Secretary General must conduct themselves and fulfill their duties, guided by the "General Standards to Govern the Operations of the General Secretariat of The Organization of American States", the Staff Rules and Regulations, the Code of Ethics, and take into consideration the pertinent decisions of the OAS Administrative Tribunal.~~

3. ~~—— To urge persons elected to these posts to be mindful of the resolutions, declarations, and recommendations issued by the General Assembly in making public statements.~~

4. ~~—— To reaffirm Resolution AG/RES. 2103 (XXXV-O/05) adopted on June 7, 2005, which stated:~~

~~(A) "that those who serve as Secretary General and Assistant Secretary General of the Organization should commit to fulfilling the purposes proclaimed in the OAS Charter and diligently performing the functions established in said Charter, in other Inter American treaties and agreements, and by the General Assembly"; "recommended that, when sponsoring candidates for the positions of Secretary General and Assistant Secretary General, member states exercise due diligence, to ensure that the candidates meet the highest standards of personal integrity, professional ability, and respect for democracy and democratic institutions, as well as for the defense and promotion of human rights;" and~~

~~(B) resolved "to instruct the Permanent Council to invite the candidates put forward by member states for the positions of Secretary General and Assistant Secretary General to give a public presentation to this Organization prior to the elections, in order to describe in greater detail their proposals and the initiatives they would undertake should they be elected"; and "that this Resolution shall not impair the authority of member states, established in Articles 73 and 74 of the Rules of Procedure of the~~

~~General Assembly, to present candidates for the positions of Secretary General and Assistant Secretary General until the day of the corresponding election”.~~

~~5.——To reaffirm Article 120 of the Charter, which states that “in selecting the personnel of the General Secretariat, first consideration shall be given to efficiency, competence, and integrity; but at the same time, in the recruitment of personnel of all ranks, importance shall be given to the necessity of obtaining as wide a geographic representation as possible”.~~

~~6.——To urge the persons candidates for the positions of Secretary General and Assistant Secretary General to make a public commitment to work for an increasingly effective, legitimate, sustainable, and representative OAS, seeking to maintain open channels of dialogue with all relevant actors in the conduct of the work of the General Secretariat, and to comply with the highest ethical standards associated with their roles.~~

~~7.——To encourage Member States, during elections for the persons who will exercise the functions of Secretary General and Assistant Secretary General, to consider that, while women account for approximately 50% of the population of The Americas, the position of Secretary General has never been occupied by a woman. Similarly, the post has never been held by a person of African descent or an indigenous person; nor has the position of Assistant Secretary General ever been held by a woman.~~